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***Via Electronic Case Filing and by First Class Mail***

November 6, 2026

Hon. Scott S. Harris
Clerk of the Court
Supreme Court of the United States
1 First Street, NE
Washington, D.C. 20543

Re: **Daniel Grand v. City of University Heights, Ohio et al., No. 25-695**

Dear Mr. Harris:

On behalf of amicus curiae, American Planning Association ("APA") I write this letter and ask that it be treated as a supplement to APA's October 29, 2026 Motion for Leave to Participate in Oral Argument and for Divided Time (the "Motion"). Specifically, the APA is asking for an enlargement of time of 5 minutes for it to participate in the oral argument.

In accordance with Rule 21, counsel for both the Petitioner and for the Respondents have been consulted. The Petitioner takes no position with respect to APA's Motion. The Respondents object to APA's Motion and do not consent to an enlargement of time.

As the APA supports neither party, an objection does not come as a surprise. Nonetheless, the APA respectfully submits that, if allowed, its participation in oral argument will greatly aid the Court in rendering its decision

Sincerely,

Brian R. Smith,
Counsel of Record for American Planning Association, amicus curiae

Copy to: E. Joshua Rosenkranz, Esq., Counsel for Petitioner
Lisa S. Blatt, Esq., Counsel for Respondents